Attwood

No 96. United States Consulate
Amoy June 29th 1874

DEPARTMENT OF STATE
RECEIVED
AUG
16
1874

Hon D. J. Henderson Acting
Secretary of the Department of State

Subject
Japanese in Formosa

Contents
Translation of Viceroy's letter and account of interview with Admiral Lee and Taotai Chain

No 36. United States Consulate
Amoy June 29th 1874

Hon: J. C. B. Davis
Asst Secy of State.
Washington D.C.

Sir,

On the 19th instant I received a visit from the Chinese Admiral Lee and Taotai Chiun of Foochow, the latter bringing me a letter from the Viceroy on the Formosan difficulty an extract from which is herewith enclosed.

Their business was to thank me for the friendship I had manifested, as they said, towards the Chinese Government, in ordering Americans to withdraw from the Japanese expedition to Formosa; to see if some further action would not be taken on their cases; and especially to ask me to go to Formosa and assist them in bringing matters to a peaceable understanding with the Japanese Commander-in-chief.

In

this connection calling my attention to the first article of our treaty of 1858. They seemed to think that Mr LeGendre, an American, had planned and was managing the expedition & therefore it was my duty to assist in getting the Japanese away. I reminded him that whatever Mr LeGendre or other Americans had to do with the affair was by authority of the Japanese Government and not the United States.

The Taotai with much apparent confidence desired my opinion on the merits of the questions between China and Japan.

I replied that it would not be proper for me to express an opinion on that part of the subject, but having received instructions from the United States Legation at Peking I was now prepared to warn all Americans to withdraw from the expedition under penalty of arrest and trial for violating the neutrality laws, and as soon as an opportunity

was offered I would send them word to that effect. (The admiral having promised to furnish a gunboat for that purpose, it was agreed that a messenger should be sent to Formosa to give the requisite notice, as soon as the ship could be got in readiness.)

What I had done in the matter I conceived to be nothing more than my duty and I was entitled to no thanks for it. As to my going with them to see the Japanese Commander-in-Chief, I thanked them and the Viceroy very much for the high compliments they paid me for asking me to perform so important an office, but I thought it would be inconsistent with my official station to act in that capacity; and in no event would I do so without express instructions from my own Government. I thought it certainly the interest of every nation to preserve peace between China and

Japan.

At that time I attached no particular importance to this request but when two days after, it was renewed by them with much importunity, with the offer to place a man of war at my disposal and give me every facility for comfort and convenience, I telegraphed the fact to Mr Seward for instructions, and was advised by him to answer the Mikado in a friendly way but to assume no prerogatives.

I presume nothing could be accomplished by complying with their request even if there were not more potent objections. I shall therefore do nothing more inconsistent with a strictly neutral course.

To day I despatched a messenger per China Steamer with instructions to go to the Japanese Camp and serve personally Messrs Cassel and Wilkinson and any other American found taking part in the expedition with a notice to withdraw under penalty of arrest and trial for violating the laws of neutrality. I also enclosed to each of the Gentlemen named, a dispatch to the same effect.

The best information I can get leads me to believe that Mr Le Gendre has not been, and is not now in Formosa, but he is in Japan directing the affair. The Chinese Officials seem to blame him more than any other one person and are very anxious he should be at once stopped from having anything to do with it, even as adviser.

The Japanese openly avow an intention to remain in Formosa and occupy the Savage territory, and report that the greater part of its inhabitants have already surrendered to them with this understanding, but say they have no desire to interfere with that part of the island belonging to China. It is my opinion however that

in the event of a declaration of war by China they will, if possible, take possession of the whole place including the treaty ports.

I have the honor to be
Sir,
Your obedient Servant
J. J. Henderson
U.S. Consul

Inclosure
1 Extract of Viceroy's letter

Now, we have investigated this Formosa business, as well as the statements of the Taotai of Formosa, and the Captain of the "Yang Woo" to the effect that this expedition to the Savages of Formosa has been planned by the former Consul at Amoy, Le Gendre, also one Cassel and Kang who were assisting &c &c. We have also examined and found that Formosa has long belonged to China, and the Savages are certainly under Chinese jurisdiction, and other Nations have nothing to do with them. On this occasion Japan has sent Soldiers to Banish the Savages, without previous Consultation with the Foreign Office, and the Jap: Commander in Chief. Hsiang, without awaiting a Communication from Me, on his own motion took Soldiers and formed a Camp at Liang kiau, in entire Violation both of International Law and the treaty between Chinese & Japan. We twice sent Communication to Hsiang Jap: Comm^r-in-Chief requiring him to take back his Soldiers, and twice sent Communication to the Board of Trade to be forwarded to your honorable Self to be examined and acted on, all which is on file.

We have received your dispatch in which you

show you desire to Carry out treaty Obligations, and in Settling Matters to preserve lasting peace and friendship, as well as your purpose to perform Your duties, for all which we desire to express our hearty thanks.

We have appointed Chiaw, Second in the Board of Trade, having rank of Taotai and formerly Acting Prefect of Foochow to go to Amoy, and have Sent a Communication to Lé Admiral at Amoy, telling him to Await the Coming of Chiaw, and then with him have a Consultation with the U.S. Consul and with him Concert some plan of action. And in accordance with the provisions of Art. 1st of the Treaty of the 8th year of Hienfung (1858) that the two Countries shall = Mutually Assist in Preserving friendly Relations, we ask you honorable Self to request the Japanese Commander Hiang. Wa to his Soldiers back to Japan.

And if in the Vessels that are gone to Formosa there are any Citizens aiding the Japanese; we ask you to Punish those that Are acting improperly whether on Land or Sea in accordance with the 11th Article of the Treaty and the Laws of your Country.

From the time when your honorable Self arrived in China you have always managed affairs in strict accordance with right, So that the Streets are full of Praises of Yourself by Rulers and People, and we ourselves are truly thankful.

Now that there are affairs in Formosa over which you are Consul, you Can show your friendly feelings by acting in accordance with treaty by takeing Measures in Connection with Admiral Lé and Prefect Chiaw. Thus Can You Show friendly feeling.

We have Sent a Communication to Admi. Lé and also one to Prefect Chiaw, ordering him to go to Amoy and Arange the whole affair with you. For which purpose we give them full Powers. And we request you to Act with these two not only as Officials, but as friends - Hoping thus, with best Regards.

To Mr Henderson
U.S. Consul, Amoy & Formosa.

June 9th 1874
" 16th " Received